

STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAIORAL
HEALTH LICENSURE,

vs.

Complaint No. 21-LPC-04

RECEIVED
AUG 16 2021
State Board of
Behavioral Health Licensure

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 2490 and was licensed on or about January 4, 2000.
2. On October 26, 2020 a Request for Inquiry ("RFI") was filed with the Board against the Respondent alleging that Respondent engaged in non-sexual dual relationship with a client (hereinafter "The Client").

3. Also on October 26, 2020, Respondent reached out to Diana Foster and informed her of the situation that The Client, in a non-therapeutic setting, stated to Respondent that she wished the Respondent was her mother. Respondent admitted to having a close personal relationship with The Client for approximately eight (8) months after the termination of the therapeutic relationship. After being provided the rule regarding interactions with former clients by Eric Ashmore, Respondent severed the relationship with The Client.

4. On November 5, 2020, the Licensed Professional Counselors Complaint Committee ("LPC CC") reached out to The Client who did not wish to pursue any action against Respondent.

5. On November 13, 2020, Respondent attended a 6.25 clock hour continuing education course titled "Boundary Setting in Clinical Practice: The Best Ethical Practices."

6. On December 3, 2020, the LPC CC issued a Notice of Violation against Respondent for violating OAC 86:10-3-3(f) Interactions with former clients by maintaining a personal relationship with a former client within five years of the termination of the counseling relationship.

7. On February 2, 2021, a Request for Inquiry ("RFI") was filed with the Board by The Client alleging that Respondent engaged in a non-sexual dual relationship, and that non-sexual dual relationship caused harm to The Client.

8. In order to resolve all issues raised in the Request for Inquiry filed in this matter, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.
2. Pursuant to 59 O.S. §1912(A)(5) of the Licensed Professional Counselors Act, the Board has the authority to deny, revoke, suspend, or place on probation any license if that license holder has engaged in unprofessional conduct.
3. Pursuant to 59 O.S. §1913.1(B), the Board has the authority to impose an administrative penalty not to exceed ten thousand dollars (\$10,000) on any person who is determined to have violated any provision of the Licensed Professional Counselors Act or any rule promulgated, or order issued pursuant thereto.
4. Respondent agrees that she did not comply with the Licensed Professional Counselor Act nor the Oklahoma Administrative Code. Respondent violated the following:

86:10-3-3. Client welfare

(f) **Interaction with former clients.** LPCs shall not knowingly enter into a close personal relationship, or engage in any business or financial dealings with a former client for five (5) years after the termination of the counseling relationship. LPCs shall not engage in any activity that is or may be sexual in nature, as defined by the Board, with a former client after the termination of the counseling relationship. Sexual conduct with former clients is prohibited. LPCs shall not exploit or obtain an advantage over a former client by the use of information or trust gained during the counseling relationship.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent will pay a five thousand (5,000) dollar administrative penalty to be paid within five (5) days from the issuance of this Order.
2. Respondent will participate in a graduate level Board approved ethics course. To be in compliance with this Order, Respondent will have to provide proof of successful completion of the course by January 31, 2022.
3. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.
4. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent, including, but not limited to, the suspension or revocation of Respondent's license.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed

to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board and endorsed by a representative of the Board.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for August 13, 2021. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of her rights to contest the allegations pending against her. Respondent acknowledges these rights include: representation by an attorney at her own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against her; the right to present evidence on her own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on her own behalf; the right to receive written findings of fact and conclusions of law

supporting the decision on the merits of the Complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily waives all of these rights.

COMPLETE AGREEMENT

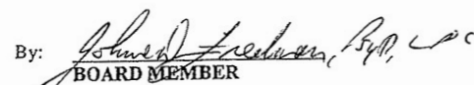
This Consent Order consists of seven (7) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.


AMY BARNETT, LPC CC Board Member

Dated this 16th day of July, 2021.

IT IS SO ORDERED.

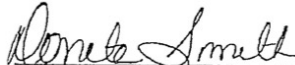
STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By: 
BOARD MEMBER

Dated this 13 day of August, 2021.

I have read the entirety of this Consent Order. I understand that by its terms I waive

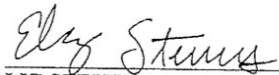
certain rights accorded me under Oklahoma law. I agree to this Consent Order:


DONITA SMITH, Respondent

Dated this 24th day of June, 2021.

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.


LIZ STEVENS, OBA NO. 34185
Assistant Attorney General
State of Oklahoma
313 N.E. 21st Street
Oklahoma City, Oklahoma 73105
(405) 522-4398; FAX (405) 522-4536

Dated this 16 day of July, 2021.

ATTORNEY FOR THE STATE OF OKLAHOMA
STATE BOARD OF BEHAVIORAL HEALTH